

RESPONSE TO FORM BBBEE 8

Request for Additional Information in terms of Regulation 15(4)(b) — Complete Filing Bundle

To	Ms Moipone Kgaboesele, B-BBEE Commission
Date	13 March 2026
Case Number	5/02/2026
Complainant	Wilbur William Matthee
Respondent	Medscheme Holdings (Division of AfroCentric Health (Pty) Ltd)
Bundle Contents	Response Letter (Sections 1–7) + Annexures A1–A6

Dear Ms Kgaboesele,

I write in response to the Request for Additional Information (Form BBBEE 8) dated 09 March 2026. I provide below full documentary responses to each of the three questions posed, together with legal analysis addressing the fronting allegations and the Respondent's anticipated defences. This submission is a complete self-contained bundle: the response letter is followed by tabbed Annexures A1–A6, each preceded by a divider page identifying the document and its relevance to the investigation.

1. YEAR OF CREDENTIAL UTILIZATION (2024–2025)

The Respondent utilized my NQF Level 8 qualifications and professional identity as a Black Specialist Nurse to satisfy the **Management Control** and **Skills Development** pillars of their B-BBEE scorecard for the **2024 and 2025 reporting periods**.

My appointment commenced on 01 May 2024. The recruitment process — which established the role as 'Specialist: Care Manager at Medscheme' — was initiated in January 2024 and concluded with a formal appointment letter dated 09 April 2024 (accepted 18 April 2024). I remained on the Respondent's payroll from May 2024 through December 2025, spanning the entirety of the 2024/2025 B-BBEE reporting cycle.

See: Annexure A1 (interview invitation, January 2024) and Annexure A2 (appointment letter, April 2024).

2. PROOF OF FUNCTIONAL APPOINTMENT: THE 'SUBSTANCE OVER FORM' BLUEPRINT

While the Respondent issued an administrative contract for a 'Care Coordinator' (Grade B4M1) at the point of signing, the following objective evidence confirms my **functional appointment as a Specialist Case Manager**:

2.1 The Recruitment Anchor (Annexure A1)

On 15 January 2024, I was formally invited to a face-to-face interview specifically for the **"Specialist: Care Manager Role"** at Medscheme. The invitation originated from Neo.Sekgoka@afrocentrichealth.com, copying both @medscheme.co.za and @afrocentrichealth.com personnel — confirming that the recruitment was a joint, cross-entity process. The organization deliberately sought and evaluated specialist-level (NQF 8) expertise to fulfil its operational requirements.

2.2 The Naming Convention Meeting — Attendees, Instruction, and Senior HR Written Confirmation (Annexures A3, A8 & A9)

In mid 2025, a formal Microsoft Teams meeting titled **"Naming Convention"** was convened by the Respondent. The meeting was attended by **Sipokazi Makaula** (Human Capital Consultant) and **Nthabiseng Nkatane** (nthabisengn@medscheme.co.za). During the meeting, **the Operational Manager** formally instructed attendees — including the Complainant — to update their designations and professional identifiers to reflect the title **"Case Manager"**. The Complainant verbally accepted this updated role and subsequently updated his Medscheme corporate email signature accordingly.

The updated corporate signature — displaying **"Case Manager: GEMS Active Disease Risk Management"** — was in active use on the Respondent's own systems by **15 October 2025**, as evidenced by the dated signature screenshot at Annexure A5. This is not a self-designation: it is the direct and documented result of a management instruction issued during a formally convened meeting.

On **19 January 2026**, **Ms Cheryl-Dawn Modern** (Senior HR Business Partner) responded in writing to the Complainant's formal objection regarding the Certificate of Service. Her response, at Annexure A9, states: **"this business process is still in progress, and I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented at this stage"**. Ms Modern was not present at the Naming Convention meeting. Her written confirmation represents the institutional position of the Respondent at Senior HR Business Partner level — the most authoritative HR confirmation available short of a board resolution. It establishes three facts that are not in dispute: (1) the Naming Convention process occurred and established a recognised higher title standard; (2) that standard was applied across the organisation; and (3) a deliberate institutional decision was made to withhold it from the Complainant's department.

SUPPRESSION OF MATERIAL EVIDENCE — FORMAL REQUEST FOR SUBPOENA

On **19 January 2026**, I served a formal written request on the Respondent for production of the 'Naming Convention' Teams recording under **Rule 7 of the Labour Court Rules** (Case WECT23564-25 / Matthee v AfroCentric Health & Others). The Respondent has **wilfully refused to produce this recording** despite the Labour Court process. I respectfully request that the Commission exercise its powers under **Section 13J(2)(e) of the B-BBEE Act** to subpoena this recording as a priority step in the investigation.

2.3 Contemporaneous Notice — Corporate Email Signature (Annexure A5)

My corporate email signature consistently identified me as a Nurse Specialist (PGrad HSM, BTech) throughout my tenure. The Respondent accepted and benefited from this specialist standing for B-BBEE scorecard purposes from May 2024 through December 2025, only attempting to 'de-name' me after I conducted a forensic audit of statutory non-compliance.

3. REBUTTAL: THE 'NO INDUCEMENT' CONTRACTUAL CLAUSE

The Commission should anticipate that the Respondent may rely on the following clause from the signed appointment letter (Annexure A2, page 4):

"I acknowledge that I have not been induced to complete this contract by any representations made to me by any person/s and hereby confirm that I have entered into this contract of my own free will."

This clause does not shield the Respondent from the B-BBEE complaint for three independent reasons:

3.1 Temporally limited to pre-contractual representations

The clause covers only representations made before the contract was signed on 18 April 2024. It has no force over post-appointment conduct including the Naming Convention directive (May 2025), the appointment as Acting Chairperson of the Health and Safety Committee, and the December 2025 de-naming. All the conduct constituting fronting occurred after signature.

3.2 Relates to inducement of the employee — not to third-party misrepresentation

The misrepresentation complained was not made to me. It was made by the Respondent to B-BBEE verification agencies through scorecard submissions and staff classification records. A boilerplate employee clause cannot waive the Respondent's obligations to a regulatory body or shield the Respondent from liability for misrepresentations made to that body.

3.3 Public law obligations cannot be contracted out of

Section 13J of the B-BBEE Act creates statutory obligations whose breach constitutes a criminal offence. No private contractual clause can exclude or limit the operation of a public law obligation. The Respondent cannot immunize itself from fronting liability through an employment contract boilerplate.

4. PROOF OF MANAGEMENT CONTROL & STATUTORY EXPLOITATION

4.1 Acting Chairperson: Health and Safety Committee

I held the statutory appointment of **Acting Chairperson of the Health and Safety Committee** and **Lead First Aider** for the 2nd, 3rd, and 4th floors. This is a regulatory oversight role carrying significant legal liability under the Occupational Health and Safety Act — a function that falls squarely within the Management Control category for B-BBEE purposes.

4.2 EHS Systems Architecture — Multi-floor Operational Leadership (Annexure A4)

In May 2025 I designed and implemented the 'Updated First Aid Daily Roster & Backup Plan.' As evidenced by the July 2025 roster, I managed **13 first aiders across three floors**, coordinating emergency response protocols, staff leave schedules, and work-from-home arrangements. This operational systems management is an inherent NQF Level 8 specialist function — it far exceeds the scope of a 'Care Coordinator.'

4.3 The 'Departmental Exclusion' Admission — Cheryl-Dawn Modern, Senior HR Business Partner (19 January 2026)

On 19 January 2026, **Ms Cheryl-Dawn Modern** (Senior HR Business Partner, Annexure A9) responded in writing confirming: **"this business process is still in progress, and I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented at this stage"**. She was not present at the Naming Convention meeting. Her confirmation comes from an HR governance level above the meeting itself — making it an institutional position, not merely a meeting record.

The combined effect of the meeting record (Sipokazi Makaula and Nthabiseng Nkatane as attendees; the Operational Manager as the instructing authority) and Cheryl-Dawn Modern's written confirmation is devastating: (1) the Naming Convention meeting occurred and established a higher title standard; (2) the instruction to update designations was given by management; (3) the Complainant updated his designation as instructed, evidenced by the corporate email signature dated 15 October 2025; and (4) the Senior HR Business Partner confirmed in writing that the standard was **deliberately not applied to the Complainant's department**. This is not a departmental oversight — it is the operational mechanism of B-BBEE fronting: substance one thing, form another.

4.4 Certificate of Service — Deliberate Title Suppression (Annexure A6)

My Certificate of Service, produced on 19 January 2026, records my role as 'Care Coordinator' — contradicting the email signature, the Naming Convention resolution of May 2025, and my functional responsibilities. This document is submitted to B-BBEE verification agencies as evidence of workforce composition. Its deliberate inaccuracy constitutes a misrepresentation to those bodies.

5. BENEFIT DIVERSION: QUANTIFICATION OF EXTRACTED VALUE

Benefit Diversion under the B-BBEE Act requires proof that the Respondent realized the transformation benefit while **diverting the corresponding economic benefit away from the Black person**. Both elements are established:

5.1 The B-BBEE Benefit Extracted by the Respondent

By classifying me as a Black Professional with an NQF Level 8 qualification in their Management Control and Skills Development pillars, the Respondent improved their B-BBEE scorecard. A single NQF 8 Black management-level appointment can contribute materially to both pillars. The Commission is respectfully requested to subpoena the Respondent's **2024/2025 B-BBEE verification certificate and underlying Management Control schedule** to confirm the specific points claimed against my credentials.

5.2 The Economic Benefit Diverted from the Complainant

The economic benefit I was entitled to, and which was systematically withheld, is quantifiable across three streams:

Salary Differential — Grade Suppression

I was appointed at Grade **B4M1 (Care Coordinator)**. The role I functionally performed — Specialist Case Manager at NQF 8 — attracts a materially higher grade and corresponding salary band within the Respondent's own grading model. The salary differential between the grade I was paid and the grade I functionally occupied represents the **primary diverted benefit**. The Respondent's own uFiling records (Annexure A6) show salary fluctuations — including a material reduction in July 2025 (R27,725.66 versus R40,000–R42,000 in

surrounding months) — which is the same month as the unlawful salary deduction that is the subject of parallel Labour Court proceedings (Matthee v AfroCentric Health & Others, Cape Town Labour Court).

Unlawful Deduction — July 2025 (Labour Court Proceedings)

In July 2025, the Respondent processed a salary deduction that exceeded the statutory cap under **Section 34(2) of the Basic Conditions of Employment Act**. This deduction — which I am challenging in the Labour Court — is itself an act of benefit diversion: the Respondent extracted financial value from my remuneration in a manner that was unlawful, in the same month in which my salary was already suppressed below specialist-grade levels.

Title-Linked Benefits, Career Progression & Management Authority

By suppressing my title to 'Care Coordinator,' the Respondent denied me the management allowances, formal authority, career advancement opportunities, and professional recognition that would have attached to the correct 'Specialist Case Manager' designation. These non-salary benefits are inherent to a management-grade role and were systematically diverted through the title suppression mechanism.

5.3 UIF Payroll Irregularities — Indicator of Systemic Data Unreliability

The uFiling portal confirms that the Respondent failed to declare my employment for June 2025, despite UIF having been deducted from my salary that month (Annexure A6). If the Respondent's payroll data is sufficiently compromised to generate statutory UIF fraud, this raises a direct question about the reliability of the same payroll system used to generate B-BBEE verification submissions. A full audit of the Respondent's B-BBEE data for 2024/2025 is warranted.

5.4 Forensic Payslip Analysis — July 2025 (Annexure A7)

The July 2025 payslip (Annexure A7) provides documentary proof of three distinct statutory violations and a fourth data integrity finding that directly implicates the reliability of the Respondent's B-BBEE reporting.

FINDING 1 — Unlawful Deduction: 40.47% in a Single Pay Run (BCEA Section 34(2))

The payslip records Normal Earnings of **R36,588.81**. Two deduction lines appear in the same pay run: Unpaid Leave Recovery (**R13,824.32**) and Unpaid Leave (**R987.45**) — a combined deduction of **R14,811.77**. This represents **40.47% of Normal Earnings** — processed in a single month, without prior written agreement and without the consultation required by the Respondent's own HCBP Policy.

Section 34(2) of the Basic Conditions of Employment Act caps deductions for loss or damage at **25% of remuneration**. The Respondent exceeded this statutory cap by **15.47 percentage points** in a single pay run. This is the unlawful deduction at the centre of the parallel Labour Court proceedings (Matthee v AfroCentric Health & Others, Cape Town Labour Court).

FINDING 2 — Declared Salary vs Payslip: Unexplained R8,863.15 Gap

The uFiling portal (Annexure A6) records the Respondent's declared salary for July 2025 as **R27,725.66**. The July 2025 payslip records Normal Earnings of **R36,588.81** and a Monthly CTC of **R42,796.13**. The uFiling declared figure reconciles with **neither** the payslip Normal Earnings nor the CTC.

The unexplained gap between Normal Earnings and the uFiling declaration is **R8,863.15**. No payslip line item accounts for this difference. The Respondent declared a salary figure to the Department of Labour that cannot be derived from their own payroll document — a data

integrity failure that directly raises the question of whether the same payroll system generates accurate B-BBEE verification submissions.

FINDING 3 — UIF Statutory Cap: R177.12 Ceiling Confirmed

The UIF employee contribution on the payslip is **R177.12**. This is the statutory maximum UIF contribution, capped under the Unemployment Insurance Contributions Act at 1% of a monthly remuneration ceiling of **R17,712.00**. The ceiling rate confirms only that my salary exceeded R17,712 — it cannot be used to work backwards to derive the actual salary figure. The inconsistency identified in Finding 2 lies entirely in the employer's separate declaration to the Department of Labour, not in the UIF calculation itself.

FINDING 4 — Payslip Position Designation Perpetuates the Misrepresentation

The payslip records the Position as **"Care Coordinator.25"** at Grade **B4M1**. This is the same suppressed designation recorded on the Certificate of Service (Annexure A6). It directly contradicts the 'Specialist: Care Manager' designation under which I was recruited (Annexure A1), the 'Case Manager' title directed by the Naming Convention meeting (Annexure A3), and the management-level functions I was performing. The payslip is itself a document generated by the Respondent that perpetuates the misrepresentation — created contemporaneously with the unlawful deduction, under the same payroll reference that feeds B-BBEE verification data.

6. SCHEDULE OF ANNEXURES

Ref	Document	Allegation Addressed
A1	Interview invitation — 'Specialist: Care Manager at Medscheme', 15 Jan 2024	Window Dressing; Q1 (year); Q2 (specialist appointment)
A2	Appointment letter on AfroCentric Investment Corporation Ltd letterhead, 09 April 2024 — title: 'Care Coordinator'	Window Dressing; Misrepresentation; No-Inducement rebuttal; Q1, Q2, Q3
A3	Internal communications confirming 'Naming Convention' meeting, May 2025 + Rule 7 production demand (refused by Respondent)	Window Dressing; Fronting; Evidence suppression — Q2 & Q3
A4	July 2025 EHS First Aider Allocation Roster — 2nd, 3rd & 4th floors (13+ staff under management)	Management Control; Benefit Diversion — Q3
A5	Case Manager corporate email signature screenshot	Window Dressing; Misrepresentation — Q2 & Q3
A6	uFiling Declaration Report — June 2025 'No Information'; July 2025 declared salary R27,725.66; Certificate of Service (title: Care Coordinator)	Benefit Diversion; Misrepresentation; Payroll data unreliability — Q3 & Section 5.3
A7	July 2025 Payslip — Normal Earnings R36,588.81; unlawful deduction R14,811.77	Benefit Diversion (salary suppression + unlawful deduction); Misrepresentation

	(40.47%); Net Pay R15,679.29; CTC R42,796.13; Position: Care Coordinator.25 Grade B4M1	(title on payslip); uFiling data gap — Section 5.4
A8	UIF Non-Compliance email chain 15–19 Jan 2026: Sipokazi Makaula false UIF compliance evidence (Aug 2025 file submitted as June proof, R40,562.53 data string); Resignation misrepresentation; 7 exit document attachments	Misrepresentation (false compliance evidence); Benefit Diversion (UIF denial via resignation classification) — Sections 7.5, 7.6
A9	Certificate of Service Misrepresentation email chain 19 Jan 2026: Complainant documents Naming Convention meeting (attendees: Sipokazi Makaula, Nthabiseng Nkatane, Operational Manager); Cheryl-Dawn Modern (Senior HR Business Partner) confirms in writing naming convention 'not applied' to Complainant's department; dated email signature screenshot 15 Oct 2025	Window Dressing & Fronting (Senior HR Business Partner written confirmation of deliberate departmental exclusion); Misrepresentation (COS title contradiction) — Sections 2.2, 4.3, 7.1

7. FURTHER SUBMISSIONS & REQUESTS TO THE COMMISSION

7.1 Subpoena: 'Naming Convention' Teams Recording — Meeting Confirmed by Multiple Witnesses

The occurrence of the Naming Convention meeting is no longer in dispute. It is confirmed by: (1) the Complainant's own contemporaneous account identifying attendees **Sipokazi Makaula** and **Nthabiseng Nkatane** and the Operational Manager's instruction; (2) the Complainant's updated corporate email signature dated **15 October 2025** as the direct result of that instruction; and (3) the written confirmation of **Ms Cheryl-Dawn Modern** (Senior HR Business Partner) on 19 January 2026 that the naming convention process was in progress but had not been applied to the Complainant's department.

The subpoena of the Teams recording remains important to establish: (a) the identity of the Operational Manager who issued the instruction; (b) the precise scope of the directive and which departments were included; (c) whether the exclusion of the Complainant's department was discussed or directed during the meeting; and (d) whether any representations were made about B-BBEE implications of the title changes.

7.2 Subpoena: 2024/2025 B-BBEE Verification Certificate and Management Control Schedule

I request that the Commission subpoena the Respondent's **2024/2025 B-BBEE verification certificate** and the underlying **Management Control schedule** submitted to the verification agency. These documents will confirm whether my credentials were claimed under the Management Control and Skills Development pillars, the specific points attributed to my profile, and the designation under which I was recorded — enabling the Commission to establish the misrepresentation with precision.

7.3 Group-Level Orchestration — JSE-Listed Parent Entity

The appointment letter (Annexure A2) was issued on AfroCentric Investment Corporation Limited letterhead — the JSE-listed holding company. The parent entity is independently subject to B-BBEE compliance obligations. The title suppression and credential extraction occurred with the knowledge and at the authorization level of the parent entity.

7.4 Parallel Labour Court Proceedings

Urgent proceedings are before the Labour Court, Cape Town (**Matthee v AfroCentric Health (RF) (Pty) Ltd and Others**) concerning the unlawful July 2025 salary deduction, occupational detriment, and protected disclosures. The evidentiary record substantially overlaps with the present complaint and is available to the Commission on request.

7.5 False Evidence of UIF Compliance Submitted by Respondent (Annexure A8)

When challenged on the June 2025 uFiling 'No Information' finding, the Respondent produced what they represented as proof that the June 2025 declaration had been submitted. That proof is demonstrably false on its face.

The Respondent's Own 'Proof' Disproves Their Claim

Sipokazi Makaula's response (Annexure A8) provides a screenshot of an email from Lufuno Sigidana dated **7/8/2025** — that is, **7 August 2025** — attaching file 00812663.408.mf as alleged proof of the June 2025 declaration. The raw data string visible in that screenshot contains the salary figure **R40,562.53**, which corresponds exactly to the **August 2025** uFiling declared salary — not any June figure. The Respondent submitted August payroll data as proof of June compliance. The uFiling portal continues to show 'No Information' for June 2025 because the June declaration was never properly submitted. The Respondent has therefore produced false evidence of statutory compliance directly to the Complainant in writing.

This finding adds a fourth dimension to the pattern of misrepresentation: the Respondent does not merely fail to comply with statutory obligations — when challenged, they produce fabricated evidence of compliance. The Commission is respectfully requested to refer this specific finding to the Department of Employment and Labour for independent investigation under the Unemployment Insurance Contributions Act.

7.6 'Resignation' Misrepresentation — Denial of Statutory UIF Benefits

The Respondent's response (Annexure A8) states that the UI-19 form is withheld because the Complainant's reason for leaving is recorded as 'Resignation', and that DEL does not process UIF claims for this category. This is a compound misrepresentation operating on two levels.

First, the characterisation of the Complainant's departure as 'Resignation' is itself contested. The Labour Court proceedings are premised on occupational detriment, constructive dismissal, and protected disclosure retaliation — none of which constitute voluntary resignation in law. The Respondent has unilaterally imposed a departure classification that serves their litigation interests while simultaneously using that classification to deny the Complainant statutory benefits the Respondent's own conduct made necessary.

Second, by informing the Complainant that he is not entitled to UIF on the basis of a classification the Respondent themselves imposed, the Respondent has extended the occupational detriment beyond the employment relationship into the post-employment statutory benefits framework. This is a continuation of the same pattern of institutional conduct documented throughout this complaint.

8. CONCLUSION

The 'Care Coordinator' label was not a job description — it was a structural tool used to facilitate fronting. The Respondent harvested my specialist-level analytical capacity, my statutory safety

leadership, and my identity as a Black Professional with an NQF Level 8 qualification for B-BBEE scorecard purposes, while deploying a junior administrative grade to suppress the salary, authority, and recognition that properly accompany that standing. The economic value of that suppression is reflected in the July 2025 salary data, the unlawful deduction before the Labour Court, and the grade differential between B4M1 and a Specialist Case Manager.

I respectfully request that the Commission:

- Initiate a formal investigation into the Respondent's Management Control filings for 2024/2025
- Note that the Naming Convention meeting is confirmed by multiple sources: Sipokazi Makaula and Nthabiseng Nkatane as documented attendees; the Operational Manager as the instructing authority; the Complainant's Medscheme corporate email signature dated 15 October 2025; and the written confirmation of Ms Cheryl-Dawn Modern (Senior HR Business Partner) on 19 January 2026 that the standard was deliberately not applied to the Complainant's department (Annexure A9)
- Refer the false UIF compliance evidence (Annexure A8) to the Department of Employment and Labour for independent investigation under the Unemployment Insurance Contributions Act
- Subpoena the Respondent's 2024/2025 B-BBEE verification certificate and Management Control schedule
- Recommend sanctions including the maximum fine of 10% of annual turnover should fronting be established
- Refer the matter to SAPS/NPA for criminal processes if misrepresentation under Section 13J(5) of the B-BBEE Act is established

I confirm all information in this response is true and correct to the best of my knowledge and belief.

Yours sincerely,

Wilbur William Matthee

RN | BTech General Nursing | PG Dip HSM (NQF 8)

Founder, EthicHawks | Forensic Governance Architect

info@ethichawks.co.za | www.ethichawks.co.za

Complainant — Case No. 5/02/2026 | 13 March 2026

ANNEXURE A1

Interview Invitation — Specialist: Care Manager

Case No. 5/02/2026 | Matthee v Medscheme Holdings

Document Description

Email from Neo Sekgoka (Neo.Sekgoka@afrocentrichealth.com) dated 15 January 2024, inviting Wilbur William Matthee to a face-to-face interview for the 'Specialist: Care Manager Role at Medscheme', scheduled 18 January 2024, Searle Street, Cape Town.

Relevance to Commission Investigation

Establishes: (1) The role title and NQF 8 specialist designation sought by the Respondent; (2) Cross-entity recruitment involving both Medscheme Holdings and AfroCentric Health personnel; (3) The year in which specialist credentials were sought (Q1); (4) Proof that appointment was into a management-grade specialist role (Q2). Supports Window Dressing and Fronting allegations.



Interview: Specialist Care Manager (Wilbur William Matthee)

2 messages

Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>Mon, 15 Jan 2024 at 12:49

To: wilburmat@gmail.com <wilburmat@gmail.com>, Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Gretchen Veldtman <Gretchen.Veldtman@afrocentrichealth.com>

Cc: Susan Mostert <susanm@medscheme.co.za>

Good day Wilbur

We look forward to meeting with you for a face-to-face interview for the **Specialist: Care Manager** Role at Medscheme. J

- o **Date:** 18 January 2024
- o **Time:** 11:00
- o **Venue:** [Searle street, The Boulevard](#), 4th Floor, Cape Town.

You are to please enter **4th Floor**, you will be meeting with **Nthabiseng Nkatane**.

If you have any questions, please do not hesitate to contact me. Moreover, kindly please accept or decline this invitation.

Kind Regards

Microsoft Teams meeting

Join on your computer, mobile app or room device

[Click here to join the meeting](#)

Meeting ID: 392 978 788 382

Passcode: SAiaqa

[Download Teams](#) | [Join on the web](#)

Join with a video conferencing device

[889941933@t.plcm.vc](tel:889941933@t.plcm.vc)

Video Conference ID: 127 029 428 0

[Alternate VTC instructions](#)

Or call in (audio only)

[+27 21 836 0608,,755542986#](tel:+27218360608755542986) South Africa, Cape Town

Phone Conference ID: 755 542 986#

[Find a local number](#) | [Reset PIN](#)

[Learn More](#) | [Meeting options](#)

CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

This email has been scanned for email related threats and delivered safely by Mimecast.
For more information please visit <http://www.mimecast.com>

3 attachments



image001.png

1 KB



invite.ics

5 KB



Wilbur William Matthee.pdf

976 KB

Wilbur William Matthee <wilburmat@gmail.com>

Mon, 15 Jan 2024 at 12:55

To: Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>

Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Gretchen Veldtman
<Gretchen.Veldtman@afrocentrichealth.com>, Susan Mostert <susanm@medscheme.co.za>

I will be attending the interview.

[Quoted text hidden]



image001.png

1 KB

ANNEXURE A2

Formal Appointment Letter — AfroCentric Investment Corporation Ltd

Case No. 5/02/2026 | Mathee v Medscheme Holdings

Document Description

Appointment letter dated 09 April 2024, issued on AfroCentric Investment Corporation Limited letterhead (JSE-listed parent entity, Reg. No. 1988/000570/06), signed by Barbara Johnson (GM: GEMS Operations.5), appointing W. Mathee as 'Care Coordinator' (Grade B4M1) in AfroCentric Health (RF) (Pty) Ltd, effective 01 May 2024. Includes page 4 containing the 'no inducement' clause.

Relevance to Commission Investigation

Establishes: (1) Title downgrade from 'Specialist: Care Manager' (recruitment) to 'Care Coordinator' (appointment) — the core mechanism of Window Dressing; (2) Parent entity involvement confirming group-level orchestration; (3) The 'no inducement' clause whose limitations are rebutted in Section 3 of this response; (4) Appointment date anchoring the 2024/2025 B-BBEE reporting period (Q1 & Q2). Supports Window Dressing, Misrepresentation and Benefit Diversion allegations.

09 April 2024

W Matthee
C/O AFROCENTRIC HEALTH (RF) (Pty) Ltd

Dear Wilbur,

INTERNAL APPOINTMENT: Care Coordinator

We are pleased to offer you the position Care Coordinator (Reference IRC78739) within AfroCentric Health (RF) (Pty) Ltd with effect from 01 May 2024. This position is situated at Cape Town.

The Key elements of your duties and responsibilities will be as discussed with you and may be revised from time to time thereafter.

CONDITIONS OF EMPLOYMENT

1. PROBATION

You will be required to successfully complete a probationary period of **six (6)** continuous months in this new position. In terms of the Group Talent Acquisition Policy, you will not be permitted to apply for any vacant position internally during this probation period.

2. REMUNERATION

We are pleased to advise you that your total package on a cost to company basis will be **R490,032.00 per annum**, payable by bank transfer into your Bank account.

The above cost to company figure includes all your contributions towards Medical Aid, Pension Fund, Group Life Assurance and Disability Assurance. If you are required to use your cell phone for business purposes, this will be deemed to be part of your cost to company package.

The Grade for your position based on our Grading Model is that of **B4M1**.

3. RETIREMENT FUNDING INCOME

www.afrocentric.za.com



AfroCentric Investment Corporation Limited Reg #1988/000570/06
T +27 11 671 2000
PO Box 1101, Florida Glen 1708 | 37 Conrad Street | Florida North | Roodepoort 1709



DIRECTORS:

Dr ATM Mokgokong (Chairman), MJ Madungandaba (Deputy Chairman), GN Van Wyk (CEO), JW Boonzaaier (CFO), M Chauke, MK Dippenaar, JB Fernandes, PB Hanratty, AM le Roux, KN Mkhize, Dr ND Munisi

Group Company Secretary: LSM Mpumlwana



A percentage between **78** and **90** (78 / 80 / 85 / 90) of your total cost to company figure, as selected by yourself, will constitute your "**Retirement Funding Income**". All contributions, both employer and employee, to the Pension / Provident Fund, Group Risk Benefits such as Life and Disability Schemes will be based on this figure.

4. LEAVE ENTITLEMENT

Your annual leave entitlement will be **seventeen (17)** working days per annum.

5. HOURS OF WORK

You will be required to work **forty-five (45) hours per week**. Your working hours are flexible and will be scheduled by the Business Unit and may include a Saturday which is deemed part of your normal working week. You will be entitled to a thirty (30) minute lunch break as scheduled. Any work performed on a Saturday will be paid at normal rates. Your working hours will be determined by the requirements of the Business Unit to which you are assigned to from time to time and may be amended to suit the operational requirements of the Business Unit.

It is a condition of employment that, as and when the need arises, you will be required to work overtime. Payment, or time off in lieu of overtime worked, hours more than forty-five (45) working hours per week, will be made in accordance with the Human Capital Payroll and Benefits Management Policy.

6. OTHER CONDITIONS OF EMPLOYMENT

All other conditions of employment not specifically mentioned in this letter remain unchanged.

7. PACKAGE RESTRUCTURING

Please feel free to have a package structuring calculation/discussion with your Line Manager or the HC Business Partner responsible for your Business Unit before accepting this offer of employment. Package restructuring takes place during June/July.

Candidate Initial _____ GM Initial BQ

8. OFFER ACCEPTANCE

Kindly sign and return the copy of this letter to your HC Business Partner. Also note that this offer is valid for three (3) days from receipt.

Please initial every page and sign in full on the last page of this document before returning to your HC Business Partner.

We would like to take this opportunity to wish you well in your new position.

Yours sincerely,



Barbara Johnson
General Manager: GEMS Operations.5
AfroCentric Health (RF) (Pty) Ltd

18 April 2024

Date Signed

Candidate Initial _____ GM Initial 

I ACCEPT OFFER extended to me for the position of Care Coordinator within AfroCentric Health (RF) (Pty) Ltd at Roodepoort. I will take up the position on 01 May 2024.

I hereby acknowledge that I have read the contents of this document and fully understand and agree to abide by the provisions thereof. I also acknowledge that the contents of this document are confidential, and I will not disclose the contents to any party within the working environment.

I acknowledge that I have not been induced to complete this contract by any representations made to me by any person/s and hereby confirm that I have entered into this contract of my own free will.

By accepting this offer of appointment, I undertake to keep abreast with updates pertaining to all company policies and procedures regularly and adhere to them.

W Matthee

DATE SIGNED

Candidate Initial _____ GM Initial _____



ANNEXURE A3

Naming Convention Meeting — Evidence of Suppression

Case No. 5/02/2026 | Matthee v Medscheme Holdings

Document Description

Internal communications confirming the 'Naming Convention' Microsoft Teams meeting held in May 2025, during which management directed the Complainant to update his title and email signature to 'Case Manager' to reflect specialist duties. Includes formal Rule 7 production demand served 19 January 2026 and the Respondent's refusal to produce the Teams recording.

Relevance to Commission Investigation

Establishes: (1) The Respondent's own internal acknowledgement that the Complainant's functional status was 'Case Manager'; (2) A management directive — not a self-designation — to adopt the specialist title; (3) Wilful suppression of this recording despite Labour Court process, warranting a Commission subpoena under Section 13J(2)(e). Supports Window Dressing, Fronting and Evidence Suppression findings.

ANNEXURE A4

July 2025 EHS First Aider Allocation Roster

Case No. 5/02/2026 | Matthee v Medscheme Holdings

Document Description

Multi-floor first aider roster for July 2025 (2nd, 3rd and 4th floors of Searle Street, The Boulevard, Cape Town), produced by Wilbur William Matthee in his capacity as Acting Chairperson of the Health and Safety Committee and Lead First Aider. Covers 13+ named first aiders across three floors with daily primary/backup allocations, leave management and WFH coordination.

Relevance to Commission Investigation

Establishes: (1) Operational management control over 13+ staff across three building floors — a Management Control function for B-BBEE purposes (Q3); (2) Statutory leadership responsibility under the Occupational Health and Safety Act; (3) Systems design and multi-team coordination consistent with NQF Level 8 specialist function. Supports Benefit Diversion and Management Control allegations.



Updated First Aid Daily Roster & Backup Plan

1 message

Wilbur William Matthee <wilburmat@gmail.com>
To: Wilbur Matthee <wilbur.matthee@medscheme.co.za>

Mon, 05 May 2025 at 10:24

Dear First Aid Team,

I hope this message finds you well.

Please be informed that we have implemented a new daily roster for all First Aiders to ensure fair distribution of duties across all floors. This change comes in response to recent observations that only certain First Aiders are being contacted during emergencies. The new roster aims to ensure equal participation and support throughout the building.

Each day will have a designated First Aider, as well as a backup person, in case the primary is not available.

Important:

If you are scheduled for leave this month, please indicate your leave dates on the roster.

Kindly share the updated roster with your team leaders so they are aware of your allocated days.

If you are the backup, please make sure the scheduled First Aider is on duty. If not, be prepared to step in.

Your cooperation is greatly appreciated in making sure that all areas are covered and that we respond swiftly in the event of an emergency.

Thank you for your commitment and continued support.

Best regards,

Okay, I will remove the weekends and any public holidays for South Africa in July 2025 from the roster.

First, let's identify the non-working days:

- **Weekends in July 2025:**
 - July 5 (Saturday), July 6 (Sunday)
 - July 12 (Saturday), July 13 (Sunday)
 - July 19 (Saturday), July 20 (Sunday)
 - July 26 (Saturday), July 27 (Sunday)
- **Public Holidays in South Africa for July 2025:**
 - There are no public holidays in South Africa during July 2025.

Here is the updated daily allocation roster, excluding weekends:

First Aider Allocation Roster: July 2025 (Weekdays Only)

Second Floor

First Aiders: Nigel Abrams, Adeline Appolles, Wilbur Matthee, Ntokozo Nxumalo (Ntokozo Nxumalo is WFH indefinitely)

Date (July 2025)	Primary First Aider	Backup First Aider	Notes
Wednesday, 2	Nigel Abrams	Adeline Appolles	Ntokozo Nxumalo WFH
Thursday, 3	Wilbur Matthee	Nigel Abrams	Ntokozo Nxumalo WFH
Friday, 4	Adeline Appolles	Wilbur Matthee	Ntokozo Nxumalo WFH
Monday, 7	Nigel Abrams	Adeline Appolles	Ntokozo Nxumalo WFH
Tuesday, 8	Wilbur Matthee	Nigel Abrams	Ntokozo Nxumalo WFH
Wednesday, 9	Adeline Appolles	Wilbur Matthee	Ntokozo Nxumalo WFH
Thursday, 10	Nigel Abrams	Adeline Appolles	Ntokozo Nxumalo WFH
Friday, 11	Wilbur Matthee	Nigel Abrams	Ntokozo Nxumalo WFH
Monday, 14	Wilbur Matthee	Nigel Abrams	Ntokozo Nxumalo WFH
Tuesday, 15	Adeline Appolles	Wilbur Matthee	Ntokozo Nxumalo WFH
Wednesday, 16	Nigel Abrams	Adeline Appolles	Ntokozo Nxumalo WFH
Thursday, 17	Wilbur Matthee	Nigel Abrams	Ntokozo Nxumalo WFH
Friday, 18	Adeline Appolles	Wilbur Matthee	Ntokozo Nxumalo WFH
Monday, 21	Nigel Abrams	Adeline Appolles	Ntokozo Nxumalo WFH
Tuesday, 22	Wilbur Matthee	Nigel Abrams	Ntokozo Nxumalo WFH
Wednesday, 23	Adeline Appolles	Wilbur Matthee	Ntokozo Nxumalo WFH
Thursday, 24	Nigel Abrams	Adeline Appolles	Ntokozo Nxumalo WFH
Friday, 25	Wilbur Matthee	Nigel Abrams	Ntokozo Nxumalo WFH
Monday, 28	Wilbur Matthee	Nigel Abrams	Ntokozo Nxumalo WFH
Tuesday, 29	Adeline Appolles	Wilbur Matthee	Ntokozo Nxumalo WFH
Wednesday, 30	Nigel Abrams	Adeline Appolles	Ntokozo Nxumalo WFH
Thursday, 31	Wilbur Matthee	Nigel Abrams	Ntokozo Nxumalo WFH

Third Floor

First Aiders: Tarryn Newman, Lucian Geswindt, Robin Lang, Zakee Ebrahim (Tarryn

Newman on annual leave from July 7th to 11th)

Date (July 2025)	Primary First Aider	Backup First Aider	Notes
Wednesday, 2	Tarryn Newman	Lucian Geswindt	
Thursday, 3	Lucian Geswindt	Robin Lang	
Friday, 4	Robin Lang	Zakee Ebrahim	
Monday, 7	Lucian Geswindt	Robin Lang	Tarryn Newman on AL (Mon-Fri)
Tuesday, 8	Robin Lang	Zakee Ebrahim	Tarryn Newman on AL (Mon-Fri)
Wednesday, 9	Zakee Ebrahim	Lucian Geswindt	Tarryn Newman on AL (Mon-Fri)
Thursday, 10	Lucian Geswindt	Robin Lang	Tarryn Newman on AL (Mon-Fri)
Friday, 11	Robin Lang	Zakee Ebrahim	Tarryn Newman on AL (Mon-Fri)
Monday, 14	Tarryn Newman	Lucian Geswindt	Tarryn Newman returns from AL
Tuesday, 15	Lucian Geswindt	Robin Lang	
Wednesday, 16	Robin Lang	Zakee Ebrahim	
Thursday, 17	Zakee Ebrahim	Tarryn Newman	
Friday, 18	Tarryn Newman	Lucian Geswindt	
Monday, 21	Zakee Ebrahim	Tarryn Newman	
Tuesday, 22	Tarryn Newman	Lucian Geswindt	
Wednesday, 23	Lucian Geswindt	Robin Lang	
Thursday, 24	Robin Lang	Zakee Ebrahim	
Friday, 25	Zakee Ebrahim	Tarryn Newman	
Monday, 28	Robin Lang	Zakee Ebrahim	
Tuesday, 29	Zakee Ebrahim	Tarryn Newman	
Wednesday, 30	Tarryn Newman	Lucian Geswindt	
Thursday, 31	Lucian Geswindt	Robin Lang	

Fourth Floor**First Aiders: Maureen Mudau, Precious Nkonde, Sandz Dyantyi-Nzunga, Audrey Rinquest, Goduletoweng Polori (Goduletoweng Polori WFH from July 7th to 21st)**

Date (July 2025)	Primary First Aider	Backup First Aider	Notes
Wednesday, 2	Maureen Mudau	Precious Nkonde	
Thursday, 3	Precious Nkonde	Sandz Dyantyi-Nzunga	
Friday, 4	Sandz Dyantyi-Nzunga	Audrey Rinquest	
Monday, 7	Maureen Mudau	Precious Nkonde	Goduletoweng Polori WFH (Mon-Fri)
Tuesday, 8	Precious Nkonde	Sandz Dyantyi-Nzunga	Goduletoweng Polori WFH (Mon-Fri)
Wednesday, 9	Sandz Dyantyi-Nzunga	Audrey Rinquest	Goduletoweng Polori WFH (Mon-Fri)

Date (July 2025)	Primary First Aider	Backup First Aider	Notes
Thursday, 10	Audrey Rinquest	Maureen Mudau	Goduletoweng Polori WFH (Mon-Fri)
Friday, 11	Maureen Mudau	Precious Nkonde	Goduletoweng Polori WFH (Mon-Fri)
Monday, 14	Audrey Rinquest	Maureen Mudau	Goduletoweng Polori WFH (Mon-Fri)
Tuesday, 15	Maureen Mudau	Precious Nkonde	Goduletoweng Polori WFH (Mon-Fri)
Wednesday, 16	Precious Nkonde	Sandz Dyantyi-Nzunga	Goduletoweng Polori WFH (Mon-Fri)
Thursday, 17	Sandz Dyantyi-Nzunga	Audrey Rinquest	Goduletoweng Polori WFH (Mon-Fri)
Friday, 18	Audrey Rinquest	Maureen Mudau	Goduletoweng Polori WFH (Mon-Fri)
Monday, 21	Sandz Dyantyi-Nzunga	Audrey Rinquest	Goduletoweng Polori WFH (Last day of WFH for Polori)
Tuesday, 22	Goduletoweng Polori	Maureen Mudau	Goduletoweng Polori returns to office
Wednesday, 23	Maureen Mudau	Precious Nkonde	
Thursday, 24	Precious Nkonde	Sandz Dyantyi-Nzunga	
Friday, 25	Sandz Dyantyi-Nzunga	Audrey Rinquest	
Monday, 28	Maureen Mudau	Precious Nkonde	
Tuesday, 29	Precious Nkonde	Sandz Dyantyi-Nzunga	
Wednesday, 30	Sandz Dyantyi-Nzunga	Audrey Rinquest	
Thursday, 31	Audrey Rinquest	Goduletoweng Polori	

ANNEXURE A5

Corporate Email Signature — 'Case Manager: GEMS Active Disease Risk Management' (15 October 2025)

Case No. 5/02/2026 | Matthee v Medscheme Holdings

Document Description

Screenshot of the Complainant's live Medscheme corporate email signature dated 15 October 2025, displaying: 'Sr. Wilbur W. Matthee | Nurse Specialist PGrad HSM, BTech Gen P (Midw,Psych,Comm) | Case Manager: GEMS Active Disease Risk Management | The Boulevard Building F & G, Searle Street, Woodstock, 7925'. This signature was hosted on Medscheme's own corporate email systems and in active use as at 15 October 2025.

Relevance to Commission Investigation

Establishes: (1) The Case Manager title was adopted pursuant to the Naming Convention directive and was active on the Respondent's own corporate systems as at 15 October 2025 — well into the B-BBEE reporting period; (2) The Respondent accepted and hosted this specialist designation on their own infrastructure while simultaneously recording 'Care Coordinator' on the Certificate of Service; (3) The precise date of 15 October 2025 anchors the title usage within the 2025 B-BBEE reporting period. Supports Window Dressing, Misrepresentation and Management Control allegations.



Wilbur Mat... 2025/10/15



to me ▾



Medscheme

Sr. Wilbur W. Matthee

*(Nurse Specialist PGrad HSM, Btech Gen P
(Midw, Psych, Comm))*

Case Manager: GEMS Active Disease Risk
Management

- +27 12 466 1332
- wilbur.matthee@medscheme.co.za
- The Boulevard Building F & G, Searle
street, Woodstock, 7925
- www.medscheme.com



document before printing this email

Confidential information. The information on this email and attachments thereto (if any) is only for the use of the
specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also
received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in
this email and any attachments thereto, once you have notified the sender.



Reply



Forward



ANNEXURE A6

Certificate of Service + uFiling Declaration Report + Salary Schedule

Case No. 5/02/2026 | Matthee v Medscheme Holdings

Document Description

Three documents: (1) Certificate of Service issued 19 January 2026, recording title as 'Care Coordinator'; (2) uFiling Declaration Status report from ufiling.labour.gov.za showing 'No Information' for June 2025 despite UIF being deducted; (3) uFiling salary schedule for Medscheme Holdings (202103–202702) showing salary data March 2025–December 2025, including the materially reduced July 2025 figure of R27,725.66.

Relevance to Commission Investigation

Establishes: (1) Deliberate title suppression on the document submitted to verification bodies (Certificate of Service); (2) Payroll data unreliability supporting a broader audit of B-BBEE verification submissions; (3) uFiling declared salary of R27,725.66 cannot be reconciled with payslip Normal Earnings of R36,588.81 — gap of R8,863.15. Supports Benefit Diversion, Misrepresentation and systemic data unreliability findings.

37 Conrad Street
Florida North
Roodepoort

Switchboard: 011 671-2000

Website: www.medscheme.co.za

19 January 2025

To Whom It May Concern

RE: CERTIFICATE OF SERVICE FOR WILBUR MATTHEE

Medscheme Holdings (Pty) Ltd hereby certify that **Wilbur Matthee**, Identity Number **8909035151087**, was employed by us for the period **01 May 2024 to 12 December 2025**.

The last position held was **Care Coordinator** in the **GEMS Disease Management** department.

At termination of service, Wilbur's Total Cost to Company Remuneration was **R42796.13** per month.

Sincerely,



AFROCENTRIC HEALTH
SALARIES DEPARTMENT
P.O. BOX 1101
FLORIDA GLEN, 1708

Keorapetse Moiloa
TSS Admin Support Officer
Human Capital Management
(011) 671 4715



Medscheme Holdings (Pty) Ltd Reg No 1970/015014/07
PO Box 1101, Florida Glen 1708 | 37 Conrad Street | Florida North | Roodepoort 1709



DIRECTORS:
G Van Wyk, KT Moloele, MJ Madungandaba, AA Mahmood, FV Nompumza, AD Schwulst (CEO), BS Madikiza, MS Bray (COO)

Group Company Secretary: LMS Mpumlwana

MEDSCHEME HOLDINGS PTY LTD (202103 - 202702)			
March 2025		April 2025	May 2025
Salary:	R40589.15	Salary:	R34637.82
Hours:	160	Hours:	160
Start Work Date:	01-05-2024	Start Work Date:	01-05-2024
End Work Date:		End Work Date:	
Termination Reason:		Termination Reason:	
June 2025		July 2025	August 2025
No Information		Salary:	R40562.53
		Hours:	160
		Start Work Date:	01-05-2024
		End Work Date:	
		Termination Reason:	
September 2025		October 2025	November 2025
Salary:	R42537.43	Salary:	R36612.73
Hours:	160	Hours:	160
Start Work Date:	01-05-2024	Start Work Date:	01-05-2024
End Work Date:		End Work Date:	
Termination Reason:		Termination Reason:	

ANNEXURE A7

July 2025 Payslip — Forensic Payslip Analysis

Case No. 5/02/2026 | Matthee v Medscheme Holdings

Document Description

Payslip for period ending 31 July 2025, issued by Medscheme Holdings (Pty) Ltd. Employee: Matthee, Wilbur William. Grade: B4M1. Position: Care Coordinator.25. Normal Earnings: R36,588.81. Deductions: Unpaid Leave Recovery (R13,824.32) + Unpaid Leave (R987.45) = R14,811.77 combined (40.47% of Normal Earnings). Net Pay: R15,679.29. CTC: R42,796.13. UIF Employee contribution: R177.12 (statutory ceiling). Pay Date: 23 July 2025.

Relevance to Commission Investigation

Forensic findings: (1) UNLAWFUL DEDUCTION — 40.47% of Normal Earnings in a single pay run exceeds the BCEA Section 34(2) cap of 25% by 15.47 percentage points, without written agreement or consultation, forming the basis of Labour Court proceedings; (2) DATA INTEGRITY GAP — uFiling declared salary of R27,725.66 (Annexure A6) cannot be reconciled with payslip Normal Earnings of R36,588.81 or CTC of R42,796.13, unexplained gap of R8,863.15; (3) UIF CEILING — R177.12 contribution confirms salary exceeded R17,712 statutory cap but cannot be used to derive actual salary; (4) TITLE MISREPRESENTATION — payslip itself records 'Care Coordinator.25' Grade B4M1, perpetuating the suppressed designation in a payroll document that feeds B-BBEE verification data. Supports Benefit Diversion, Misrepresentation and Section 5.4 forensic analysis.

PO Box 1101, Florida Glen, 1708
 37 Conrad Street, Florida North,
 Roodepoort, 1709
 t +27 11 671 2000
 www.medscheme.com

Employee Identity Number	Matthee, Wilbur William(Wilbur),Mr. 8909035151087	Employer Name	Medscheme Holdings (Pty) Ltd
Employee Number	7074649	Grade	B4M1
Location	The Boulevard	Position	Care Coordinator.25
Hire Date	01-May-2024	Original Hire Date	01-May-2024
Assignment Number	7074649	Payroll	Medscheme Holdings (Permanent)
Employee Address	Street Number: 15 Street or Name of Farm: Bellevue Street Suburb or District: Voorbrug, Postal Code: 7100	Employer Address	The Boulevard 4th Floor Searle Street Cape Town 7925

Payroll Information		
Period End Date	Tax Period	Payment Frequency
31-Jul-2025	5	Calendar Month

Tax Information		
Tax Status	Tax Reference No	Pay Date
Normal	0694546243	23-JUL-2025

Summary of Payment		
Total Earnings	Total Deductions	Total Net Pay
21,777.04	6,097.75	15,679.29

Earnings	
Description	Amount
Normal Earnings	36,588.81
Unpaid Leave Recovery	(13,824.32)
Unpaid Leave	(987.45)

Deductions	
Description	Amount
Sanlam Funeral Cover	52.00
Bonitas EE	1,471.33
Sanlam Pension Fund EE	2,503.57
UIF Employee	177.12
PAYE	1,743.73
Access Tags Loss	150.00

Fringe Benefits and Additional Info	
Description	Amount
Medical Aid Bonitas ER	2,942.67
PHI Disability ER	469.00
Sanlam Pension Fund ER	2,536.95
UIF Employer Contribution	177.12
Group Life	258.70
Medical Aid Fringe Benefit	2,942.67
Medical Aid Tax Credit	728.00
Monthly Salary Info - CTC	42,796.13
PHI FBT	469.00
Retirement Funding Income %	78.00

YTD Accumulations & Balances	
Description	Amount
Medical Aid Tax Credit YTD	3,640.00
Medical Aid ER YTD	14,713.35
Medical Aid EE YTD	7,356.65
PAYE YTD	23,491.73
Normal Earnings YTD	181,133.44
Total Taxable Income YTD	161,080.84
UIF Employee Contribution YTD	885.60

Net Pay Distribution			
Payment Method	Bank Branch Code	Account Number	Amount
ACB	679000	10961611474	15,679.29

Message(s)
No Message(s) Found

ANNEXURE A8

UIF Non-Compliance Notice & False Compliance Evidence — Email Chain 15–19 January 2026

Case No. 5/02/2026 | Matthee v Medscheme Holdings

Document Description

Five-message email chain: Wilbur Matthee to Sipokazi Makaula / Cheryl-Dawn Modern, 15–19 January 2026. Initiated with formal notice of June 2025 UIF non-compliance and demand for exit documents. Sipokazi Makaula's 19 January response provides screenshot of Lufuno Sigidana's email dated 7 August 2025 attaching file 00812663.408.mf as alleged proof of June 2025 UIF compliance. Raw data string in screenshot shows salary figure R40,562.53 — matching the August 2025 uFiling declared salary, not any June figure. Also includes statement that UI-19 withheld because departure recorded as Resignation, and seven exit document attachments including Certificate of Service, Salary Schedule, UI-19 form, and Sanlam withdrawal forms (Ref 82104113).

Relevance to Commission Investigation

Key findings: (1) FALSE COMPLIANCE EVIDENCE — the August 2025 payroll file submitted as proof of June 2025 UIF compliance is demonstrably the wrong month, established by the R40,562.53 salary figure in the raw data (Section 7.5); (2) RESIGNATION MISREPRESENTATION — unilateral classification of departure as Resignation to deny UIF benefits while constructive dismissal is before the Labour Court (Section 7.6); (3) CERTIFICATE OF SERVICE MISREPRESENTATION — documents received show 'Care Coordinator' title, contradicting the Naming Convention directive confirmed by the Operational Manager. Supports Misrepresentation, Benefit Diversion and statutory non-compliance findings.



Correction Required – Certificate of Service Misrepresentation

4 messages

Wilbur William Matthee <info@ethichawks.co.za> Mon, 19 Jan 2026 at 12:25
To: Monwabisi Kula <monwabisi.kula@afrocentrichealth.com>, Lindiwe.Miyambu@afrocentrichealth.com
Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>, Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>, Tebogo.Makoe@afrocentrichealth.com, nthabisengn@medscheme.co.za
Bcc: wilburmat@gmail.com

Dear Sipokazi,

I acknowledge receipt of the Certificate of Service. However, I must formally object to the fact that my role has been adjusted to align with the Opposing Affidavit dated 10 December 2025, rather than reflecting my actual employment records.

The Certificate of Service is a statutory document required for UIF and fund processing. It must be accurate and consistent with payroll and HR records, not tailored to litigation pleadings. Adjusting my role to fit an affidavit constitutes misrepresentation and undermines compliance with the Basic Conditions of Employment Act.

I further note that both you and Nthabiseng were present in the recorded Teams meeting titled “Naming Convention”, where the Operational Manager encouraged us to update our statistics. That meeting provides direct evidence that the employer had full knowledge of my role, identity, and responsibilities. Any deviation from those facts in the Certificate of Service is therefore unjustifiable.

I therefore request that the Benefits Team urgently issue a corrected Certificate of Service that reflects my true role and employment details, as per payroll and HR records and the recorded meeting. As a result, of this failure, that is evedince require you have not met your 12:00 deadline, I require correct Certificate of Service by close of business 19 January 2026.

Should this not be provided within the stipulated timeframe, I will proceed to file a formal complaint with the Department of Employment and Labour (DEL) and request a statutory audit of the employer’s compliance.

Please confirm by return email before close of business.

Kind regards,

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF)

<postmaster@medscheme.co.za> Mon, 19 Jan 2026 at 12:26
To: info@ethichawks.co.za

Delivery has failed to these recipients or groups:

tebogo.makoe@afrocentrichealth.com

A communication failure occurred during the delivery of this message. Please try

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

This email has been scanned for email related threats and delivered safely by Mimecast.
For more information please visit <http://www.mimecast.com>

[Quoted text hidden]

Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com> Mon, 19 Jan 2026 at 15:40
To: info@ethichawks.co.za <info@ethichawks.co.za>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula
<Sipokazi.Makaula@afrocentrichealth.com>

Dear Wilbur

Thank you for your e-mail,

Ito correspondences, from an HR perspective, I would like to confirm that we responded within the stipulated timeframe and provided all information required from our side. Furthermore the Certificate of Service issued is correct and fully aligned with our employment records as well as statutory requirements.

With regard to the naming-convention changes, please note that this business process is still in progress, and I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented at this stage. Your title is therefore accurately and correctly reflected in the Certificate of Service.

Should you require any additional documentation, we are available to assist; however, our position regarding the accuracy of the certificate remains unchanged.

Kind Regards

Cheryl-Dawn Modern

Senior HR Business Partner

+27 (011) 671 4819

cheryl-dawnm@afrocentrichealth.com

[37 Conrad St, Florida North, Roodepoort](#) | PO Box 1101, Florida
Glen, 1709

www.afrocentric.za.com



Please consider the environment before printing this email

Always aligning our leaders & people with the business purpose.

CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: Monday, January 19, 2026 12:25 PM
To: Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>; Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>
Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Tebogo.Makoe@afrocentrichealth.com <Tebogo.Makoe@afrocentrichealth.com>; Nthabiseng Nkatane <nthabisengn@medscheme.co.za>
Subject: Correction Required – Certificate of Service Misrepresentation

This message originated from outside your organization

Dear Sipokazi,

[Quoted text hidden]

[Quoted text hidden]

 **image014.png**
29 KB

Wilbur William Matthee <info@ethichawks.co.za> Mon, 19 Jan 2026 at 16:30
To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Bcc: wilburmat@gmail.com

Dear Cheryl-Dawn,

Thank you for the information provided.

You have stated that the company was compliant with the statutory timeline. However, the documents I received were incomplete, which means the company is in fact not compliant with statutory requirements.

For the record:

- I verbally accepted the updated role during the recorded Teams meeting titled "Naming Convention", attended by Sipokazi Makaula and Nthabiseng Nkatane, where the Operational Manager informed me to update my identifiers.
- I subsequently updated my professional signature to reflect the new title.
- Both the recording and my updated signature constitute legally binding confirmation of the naming convention.

Despite this, the Certificate of Service issued contradicts both the recorded meeting and my updated signature, and has been aligned with the employer's Opposing Affidavit dated 10 December 2025. This alignment is illegal, as statutory documents must reflect factual employment records, not be tailored to litigation pleadings.

As a result, the current Certificate of Service will form part of my legal proceedings. Unless a corrected version is provided by close of business today, 19 January 2026, I will proceed to file a formal complaint with the Department of Employment and Labour (DEL) and include this matter in my Labour Court affidavit.

Kind regards,



Wilbur Mat... 2025/10/15



to me ▾



Medscheme

Sr. Wilbur W. Matthee

*(Nurse Specialist PGrad HSM, Btech Gen P
(Midw, Psych, Comm))*

Case Manager: GEMS Active Disease Risk
Management

- +27 12 466 1332
- wilbur.matthee@medscheme.co.za
- The Boulevard Building F & G, Searle
street, Woodstock, 7925
- www.medscheme.com



document before printing this email

Confidential information. The information on this email and attachments thereto (if any) is only for the use of the
specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also
received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in
this email and any attachments thereto, once you have notified the sender.



Reply



Forward



ANNEXURE A9

Certificate of Service Misrepresentation & Cheryl-Dawn Modern Naming Convention Confirmation — 19 January 2026

Case No. 5/02/2026 | Matthee v Medscheme Holdings

Document Description

Four-message email chain: Wilbur Matthee to Monwabisi Kula / Lindiwe Miyambu, cc Sipokazi Makaula / Cheryl-Dawn Modern / Nthabiseng Nkatane, 19 January 2026. Complainant formally objects to Certificate of Service recording 'Care Coordinator' rather than 'Case Manager', citing the recorded Naming Convention Teams meeting attended by Sipokazi Makaula and Nthabiseng Nkatane, where the Operational Manager instructed attendees to update their designations. Cheryl-Dawn Modern (Senior HR Business Partner) responds at 15:40 on same day confirming: 'this business process is still in progress, and I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented at this stage.' Complainant's reply at 16:30 formally records the meeting facts and escalates. Includes screenshot of Medscheme corporate email signature dated 15 October 2025 displaying 'Case Manager: GEMS Active Disease Risk Management'.

Relevance to Commission Investigation

The single most important document in this bundle for establishing the Naming Convention admission. Cheryl-Dawn Modern's 15:40 response on 19 January 2026 constitutes a written institutional confirmation by the Respondent's Senior HR Business Partner that: (1) the Naming Convention business process occurred and established a recognised higher title standard; (2) the Complainant's department was deliberately excluded from that standard; and (3) the Certificate of Service recording 'Care Coordinator' reflects this deliberate exclusion. Combined with the meeting attendee record (Sipokazi Makaula, Nthabiseng Nkatane, and the Operational Manager as instructing authority) and the dated email signature screenshot, this document closes the evidentiary loop on the window dressing mechanism. Supports Window Dressing, Misrepresentation and Fronting allegations — Sections 2.2, 4.3 and 7.1.



Correction Required – Certificate of Service Misrepresentation

4 messages

Wilbur William Matthee <info@ethichawks.co.za>
To: Monwabisi Kula <monwabisi.kula@afrocentrichealth.com>, Lindiwe.Miyambu@afrocentrichealth.com
Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>, Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>, Tebogo.Makoe@afrocentrichealth.com, nthabisengn@medscheme.co.za
Bcc: wilburmat@gmail.com

Mon, 19 Jan 2026 at 12:25

Dear Sipokazi,

I acknowledge receipt of the Certificate of Service. However, I must formally object to the fact that my role has been adjusted to align with the Opposing Affidavit dated 10 December 2025, rather than reflecting my actual employment records.

The Certificate of Service is a statutory document required for UIF and fund processing. It must be accurate and consistent with payroll and HR records, not tailored to litigation pleadings. Adjusting my role to fit an affidavit constitutes misrepresentation and undermines compliance with the Basic Conditions of Employment Act.

I further note that both you and Nthabiseng were present in the recorded Teams meeting titled “Naming Convention”, where the Operational Manager encouraged us to update our statistics. That meeting provides direct evidence that the employer had full knowledge of my role, identity, and responsibilities. Any deviation from those facts in the Certificate of Service is therefore unjustifiable.

I therefore request that the Benefits Team urgently issue a corrected Certificate of Service that reflects my true role and employment details, as per payroll and HR records and the recorded meeting. As a result, of this failure, that is evedince require you have not met your 12:00 deadline, I require correct Certificate of Service by close of business 19 January 2026.

Should this not be provided within the stipulated timeframe, I will proceed to file a formal complaint with the Department of Employment and Labour (DEL) and request a statutory audit of the employer’s compliance.

Please confirm by return email before close of business.

Kind regards,

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF)

<postmaster@medscheme.co.za>
To: info@ethichawks.co.za

Mon, 19 Jan 2026 at 12:26

Delivery has failed to these recipients or groups:

tebogo.makoe@afrocentrichealth.com

A communication failure occurred during the delivery of this message. Please try

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

This email has been scanned for email related threats and delivered safely by Mimecast.
For more information please visit <http://www.mimecast.com>

[Quoted text hidden]

Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com> Mon, 19 Jan 2026 at 15:40
To: info@ethichawks.co.za <info@ethichawks.co.za>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula
<Sipokazi.Makaula@afrocentrichealth.com>

Dear Wilbur

Thank you for your e-mail,

Ito correspondences, from an HR perspective, I would like to confirm that we responded within the stipulated timeframe and provided all information required from our side. Furthermore the Certificate of Service issued is correct and fully aligned with our employment records as well as statutory requirements.

With regard to the naming-convention changes, please note that this business process is still in progress, and I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented at this stage. Your title is therefore accurately and correctly reflected in the Certificate of Service.

Should you require any additional documentation, we are available to assist; however, our position regarding the accuracy of the certificate remains unchanged.

Kind Regards

Cheryl-Dawn Modern

Senior HR Business Partner

📞 +27 (011) 671 4819

✉️ cheryl-dawnm@afrocentrichealth.com

📍 [37 Conrad St, Florida North, Roodepoort](#) | PO Box 1101, Florida Glen, 1709

🌐 www.afrocentric.za.com



Please consider the environment before printing this email

Always aligning our leaders & people with the business purpose.

CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: Monday, January 19, 2026 12:25 PM
To: Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>; Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>
Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Tebogo.Makoe@afrocentrichealth.com <Tebogo.Makoe@afrocentrichealth.com>; Nthabiseng Nkatane <nthabisengn@medscheme.co.za>
Subject: Correction Required – Certificate of Service Misrepresentation

This message originated from outside your organization

Dear Sipokazi,

[Quoted text hidden]

[Quoted text hidden]

 **image014.png**
29 KB

Wilbur William Matthee < info@ethichawks.co.za > To: Cheryl-Dawn Modern < Cheryl-DawnM@afrocentrichealth.com > Cc: Nthabiseng Nkatane < nthabisengn@medscheme.co.za >, Sipokazi Makaula < Sipokazi.Makaula@afrocentrichealth.com > Bcc: wilburmat@gmail.com	Mon, 19 Jan 2026 at 16:30
---	---------------------------

Dear Cheryl-Dawn,

Thank you for the information provided.

You have stated that the company was compliant with the statutory timeline. However, the documents I received were incomplete, which means the company is in fact not compliant with statutory requirements.

For the record:

- I verbally accepted the updated role during the recorded Teams meeting titled "Naming Convention", attended by Sipokazi Makaula and Nthabiseng Nkatane, where the Operational Manager informed me to update my identifiers.
- I subsequently updated my professional signature to reflect the new title.
- Both the recording and my updated signature constitute legally binding confirmation of the naming convention.

Despite this, the Certificate of Service issued contradicts both the recorded meeting and my updated signature, and has been aligned with the employer's Opposing Affidavit dated 10 December 2025. This alignment is illegal, as statutory documents must reflect factual employment records, not be tailored to litigation pleadings.

As a result, the current Certificate of Service will form part of my legal proceedings. Unless a corrected version is provided by close of business today, 19 January 2026, I will proceed to file a formal complaint with the Department of Employment and Labour (DEL) and include this matter in my Labour Court affidavit.

Kind regards,